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Amending Acts

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Act No. 33 of the year 2074

An Act Made to Provide for the Rapti Health Sciences Academy

Preamble: Whereas, it is desirable to make necessary provisions relating to the establishment and operation of the Rapti Health Sciences Academy to produce skilled manpower required by the country by providing high-level study and research in the field of health sciences and to provide easy, accessible and quality health services to the general public in health services,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Rapti Health Sciences Academy Act, 2074".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Hospital" means the hospital pursuant to Section 15.

(b) "Hospital Management Committee" means the Hospital Management Committee formed pursuant to Section 16.

(c) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 19.

(d) "Executive Council" means the Executive Council formed pursuant to Section 11.

(e) "Chancellor" means the Chancellor pursuant to Section 17.

(f) "Dean" means the Dean pursuant to Section 22.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(h) "Director" means the Director pursuant to Section 23.

- (i) "Academy" means the Rapti Health Sciences Academy established pursuant to Section 3.
- (j) "Academic Council" means the Academic Council formed pursuant to Section 9.
- (k) "Ministry" means the Ministry of the Government of Nepal looking after health affairs.
- (l) "Registrar" means the Registrar pursuant to Section 21.
- (m) "Teacher" means a person appointed to teach and conduct research in the Academy.
- (n) "Dean of Academic Affairs" means the Dean of Academic Affairs pursuant to Section 20.
- (o) "Educational Institution" means the Educational Institution established pursuant to Section 14.
- (p) "Assembly" means the Assembly formed pursuant to Section 7.
- (q) "Pro-Chancellor" means the Pro-Chancellor pursuant to Section 18.

Chapter-2 Establishment, Nature and Functions, Duties and Powers of the Academy

3.

Establishment of the Academy: (1) The Rapti Health Sciences Academy is established for carrying out high-level study, teaching and research in the field of health sciences and for providing easy, accessible and quality health services to the general public in health services. (2) The central office of the Academy shall be located in Ghorahi, Dang District. (3) The Academy shall be called "Rapti Academy of Health Sciences" in the English language. 4. Academy to be Autonomous Body: (1) The Academy shall be an autonomous body with perpetual succession. (2) The Academy shall have a separate seal for all its acts and business. (3) The Academy may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Academy may, like a person, sue and be sued in its own name. 5. Nature of the Academy: The following organizations shall exist within the Academy, and their collective form shall constitute the nature of the Academy: - (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Service Commission, (e) Academic Council (Vidya Parishad), (f) Faculty, (g) Research Center, (h) Educational Institution, (i) Hospital, (j) Other bodies as prescribed. 6. Functions, Duties and Powers of the Academy: (1) The functions, duties and powers of the Academy shall be as follows: - (a) To conduct and cause to conduct study, teaching, training and research on various subjects related to health, (b) To provide quality and accessible health services, (c) To make agreements with study, teaching, training institutions and hospitals on various subjects related to health, (d) To produce skilled manpower required for quality health services, (e) To coordinate with domestic or foreign universities, educational institutions or hospitals to strengthen various programs operated by the Academy and enhance the quality of such programs, (f) To establish, expand and strengthen relations and exchange mutual cooperation with domestic and foreign universities, academies and international organizations related to health, (g) To organize and cause to organize workshops, conferences, seminars, interactions on various subjects related to health, (h) To publish and cause to publish various books, pamphlets, bulletins and awareness posters related to health, (i) To perform and cause to perform other works as prescribed. (2) The functions, duties and powers of the Academy shall be exercised and fulfilled through the organizations of the Academy. Chapter-3 Formation and Functions, Duties and Powers of the Assembly 7.

Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the Academy. (2) The Assembly shall be formed as follows: - Position Role (a) Chancellor Chairperson (b) Pro-Chancellor Vice-Chairperson (c) Member, National Planning Commission (looking after health sector) Member (d)

Vice-Chancellor Member (e) Two persons nominated by the Assembly from amongst the Vice-Chancellors of universities and other academies providing higher education related to health sciences on the recommendation of the Executive Council Member (f) Secretary, Ministry Member (g) Secretary, Ministry of Finance, Government of Nepal Member (h) Secretary, Ministry of the Government of Nepal looking after education affairs Member (i) Dean of Academic Affairs Member (j) One person nominated by the Assembly from amongst the Deans Member (k) Director Member (l) Chief, Dang District Coordination Committee Member (m) Chief, Ghorahi Sub-Metropolitan City Member (n) Two persons, including at least one woman, nominated by the Executive Council from amongst the teachers on the recommendation of the Academic Council Member (o) One person nominated by the Assembly from amongst the heads of educational institutions on the recommendation of the Executive Council Member (p) Chairperson, Nepal Health Research Council Member (q) Chairperson, Nepal Medical Council Member (r) Four persons, including at least two women, nominated by the Assembly from amongst Dalits, Adivasi/Janajati and backward classes, ensuring representation, on the recommendation of the Executive Council Member (s) Two persons, including at least one woman, nominated by the Assembly from amongst donors on the recommendation of the Executive Council Member (t) One person nominated by the Assembly from amongst the employees working in the Academy Member (u) Registrar Member Secretary (3) The term of office of members nominated pursuant to Sub-section (2) shall be three years. (4) If the position of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period through the same procedure by which the position was previously filled. (5) The procedure relating to meetings of the Assembly shall be as prescribed. 8.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows: - (a) To approve the policy, plan and program of the Academy, (b) To approve the annual budget of the Academy, (c) To approve the rules of the Academy, (d) To grant scholarships, degrees, certificates, medals and awards on behalf of the Academy, (e) To confer honorary degrees as prescribed, (f) To guide and give necessary directions to various bodies of the Academy under its purview, (g) To give necessary suggestions to the Government of Nepal in the course of formulating national health and education policy, (h) To approve the annual report of the Academy, (i) To discuss and approve the audit report of the Academy, (j) To make or cause to make necessary arrangements regarding the establishment of educational institutions, (k) To perform and cause to perform other works as prescribed. Chapter-4 Formation and Functions, Duties and Powers of the Academic Council 9. Formation of the Academic Council: (1) There shall be an Academic Council as a body to systematize and regularize the educational, academic and research activities of the Academy. (2) The Academic Council shall be formed as follows: - (a) Dean of Academic Affairs - Chairperson (b) Five persons nominated by the Assembly from amongst the chairpersons of various subject committees of the Academy on the recommendation of the Executive Council - Member (c) Director - Member (d) Chiefs of bodies related to curriculum and examination of the Academy - Member (e) Two persons, including at least one woman, nominated by the Assembly from amongst the teachers on the recommendation of the Executive Council - Member (f) Two persons, including at least one woman, nominated by the Assembly from amongst the persons who have made distinguished contributions in the health field on the recommendation of the Executive Council - Member (g) Dean nominated by the Vice-Chancellor from amongst the Deans - Member Secretary (3) The term of office of members nominated pursuant to Sub-section (2) shall be three years. (4) If the position of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period through the same procedure by which the position was previously filled. (5) The procedure relating to meetings of the Academic Council shall be as prescribed. 10.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic

Council shall be as follows: - (a) To formulate necessary policies, plans and programs to systematize and regularize the educational, academic and research activities of the Academy and submit them to the Assembly for approval, (b) To conduct and cause to conduct study and research programs to provide education on various subjects and levels related to health sciences, (c) To determine the qualification of teachers required for the Academy, (d) To determine the standard of study, research, training and coaching programs operated by the Academy and approve the curriculum, (e) To select students, (f) To determine the standards of examination, (g) To conduct examinations and publish results, (h) To recommend to the Assembly to confer degrees to students who succeed in study programs operated by the Academy, (i) To recommend to the Assembly to confer honorary degrees, scholarships, medals and awards on behalf of the Academy, (j) To prepare quality textbooks, (k) To evaluate study, research, training and coaching programs operated by the Academy, (l) To determine fees for study, training and research, (m) To implement and monitor decisions related to the Academic Council approved by the Assembly, (n) To perform other works as prescribed. Chapter-5 Formation and Functions, Duties and Powers of the Executive Council 11. Formation of the Executive Council: (1) There shall be an Executive Council to act as the executive body of the Academy. (2) The Executive Council shall be formed as follows: - (a) Vice-Chancellor - Chairperson (b) Dean of Academic Affairs - Member (c) One person from amongst the Deans - Member (d) One person from amongst the heads of educational institutions who are members of the Assembly - Member (e) Director - Member (f) One person from amongst the teachers - Member (g) Registrar - Member-Secretary (3) Nomination of members pursuant to Clauses (c), (d) and (f) of Sub-section (2) shall be made by the Pro-Chancellor on the recommendation of the Vice-Chancellor. (4) The term of office of members nominated pursuant to Sub-section (2) shall be three years. (5) The procedure relating to meetings of the Executive Council shall be as prescribed. 12.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows: - (a) To implement and cause to implement the decisions and directions of the Assembly, (b) To prepare draft rules required for the Academy and submit them to the Assembly for approval, (c) To prepare policies, plans, annual programs, progress reports, annual budgets, audit reports and other proposals of the Academy and submit them to the Assembly for approval, (d) To monitor and evaluate the works and actions performed by subordinate bodies and give directions to such bodies as required, (e) Subject to the policy direction of the Assembly, to operate, manage, protect, sell and lease the fund and movable and immovable property of the Academy, Provided that, while selling immovable property received from the Government of Nepal, approval of the Government of Nepal shall be obtained. (f) To accept various types of assistance received by the Academy, (g) To perform and cause to perform other works as prescribed. Chapter-6 Academic Council (Vidya Parishad), Faculty, Educational Institution, Hospital and Other Bodies 13. Provisions relating to Vidya Parishad, Faculty and Research Center: (1) The Academy may establish Vidya Parishad, Faculty and Research Center. (2) The formation and functions, duties and powers of the Vidya Parishad, Faculty and Research Center established pursuant to Sub-section (1) shall be as prescribed. 14. Establishment and Operation of Educational Institution: (1) The Academy may establish an educational institution as required for the purpose of conducting study and research on various subjects related to health sciences. (2) The operation of an educational institution established pursuant to Sub-section (1) shall be as prescribed. 15. Establishment and Operation of Hospital: (1) The Academy shall establish a hospital to conduct high-level study and research in the health field and to provide quality and accessible health services. (2) The Rapti Sub-Regional Hospital established and operating under the prevailing law at the time of commencement of this Act shall be deemed to have been established pursuant to Sub-section (1). (3) The operation and management of the hospital shall be as prescribed. 16. Hospital Management

Committee: (1) There shall be a Hospital Management Committee to operate and cause to operate the hospital smoothly. (2) The formation and functions, duties and powers of the Hospital Management Committee shall be as prescribed. Chapter-8 Office Bearers, Teachers and Employees of the Academy 17. Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the chief of the Academy. (3) The Chancellor may inspect the Academy. 18. Pro-Chancellor: The Minister for Health shall be the Pro-Chancellor of the Academy. 19.

Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer working full-time in the Academy. (2) A committee comprising the Pro-Chancellor as Chairperson and two other members of the Assembly shall be formed by the Chancellor to recommend for appointment to the position of Vice-Chancellor, and the Chancellor shall appoint the Vice-Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years. (4) The functions, duties and powers, remuneration, facilities and other terms of service of the Vice-Chancellor shall be as prescribed. 20. Dean of Academic Affairs: (1) The Pro-Chancellor shall appoint the Dean of Academic Affairs on the recommendation of the Vice-Chancellor for the supervision of educational and academic work of the Academy. (2) The Dean of Academic Affairs shall be an office bearer working full-time in the Academy. (3) The term of office of the Dean of Academic Affairs shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Dean of Academic Affairs shall be as prescribed. 21. Registrar: (1) The Pro-Chancellor shall appoint the Registrar on the recommendation of the Vice-Chancellor for the supervision of financial and personnel administration work of the Academy. (2) The Registrar shall be an office bearer working full-time in the Academy. (3) The term of office of the Registrar shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Registrar shall be as prescribed. 22. Dean: (1) The Vice-Chancellor shall appoint the Dean to work as the chief of a Faculty of the Academy. (2) The Dean shall be an office bearer working full-time in the Academy. (3) The term of office of the Dean shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Dean shall be as prescribed. 23. Director: (1) The Vice-Chancellor shall appoint the Director on the recommendation of the Registrar to work as the administrative chief of the hospital. (2) The term of office of the Director shall be four years. (3) Other functions, duties and powers, remuneration, facilities and other terms of service of the Director shall be as prescribed. 24.

Other Office Bearers: (1) There may be other office bearers in the Academy as prescribed. (2) The appointment, functions, duties and powers, remuneration, facilities and terms of service of the office bearers pursuant to Sub-section (1) shall be as prescribed. 25. Power to Remove from Office: (1) If at least one-fourth of the members present at the time in the Assembly submit a written application to the Chancellor stating that the Vice-Chancellor, Dean of Academic Affairs or Registrar has not fulfilled his/her official responsibility, has not behaved according to the position, or has not honestly performed his/her duty, the Chancellor shall form a three-member investigation committee comprising any member of the Assembly as Chairperson, another member, and the Secretary of the Ministry. (2) If the investigation committee pursuant to Sub-section (1) recommends that the Vice-Chancellor, Dean of Academic Affairs or Registrar has not fulfilled his/her official responsibility, has not performed honestly, or has not fulfilled his/her duty, and if that matter is passed by a meeting of the Assembly, the Chancellor shall remove such Vice-Chancellor, Dean of Academic Affairs or Registrar from his/her office. (3) After the formation of the investigation committee pursuant to Sub-section (1) until a decision is made by the Assembly pursuant to Sub-section (2), such office bearer shall be automatically suspended from his/her office. (4) Provisions relating to removal from office of other office bearers of the Academy except the Vice-Chancellor, Dean of Academic Affairs or Registrar shall be as prescribed. (5) Before recommending the removal of an office bearer of the Academy pursuant to

Sub-section (2), the investigation committee shall provide an opportunity for that person to submit a defense against the allegations leveled against him/her. 26. Teachers and Employees of the Academy: (1) There shall be teachers and employees in the Academy as required. (2) The appointment of teachers and employees of the Academy shall be as prescribed on the recommendation of the Public Service Commission. (3) The functions, duties and powers, remuneration, facilities and other terms of service of the teachers and employees of the Academy shall be as prescribed. Chapter-9 Fund, Accounts and Audit of the Academy 27.

Fund of the Academy: (1) The Academy shall have a separate Fund. (2) The Fund pursuant to Sub-section (1) shall consist of the following amounts: - (a) Amount received from the Government of Nepal, (b) Amount received from educational fees and service fees, (c) Amount received as grant or loan from domestic or foreign persons, associations, organizations or foreign governments, (d) Amount received from other sources. (3) Before receiving any amount from a foreign person, association, organization or government pursuant to Clause (c) of Sub-section (2), the Academy shall obtain the approval of the Ministry of Finance, Government of Nepal. (4) The amount in the Fund of the Academy shall be deposited by opening an account in a commercial bank. (5) All expenses of the Academy shall be borne from the Fund pursuant to Sub-section (1). (6) The operation of the Fund and accounts of the Academy shall be as prescribed. 28. Accounts and Audit: (1) The accounts of income and expenditure of the Academy shall be kept in accordance with the prevailing law. (2) The audit of the Academy shall be conducted by the Auditor General. Chapter-10 Miscellaneous 29. Not to Grant Affiliation: The Academy shall not grant affiliation to any educational institution. 30. May Merge Other Institutions: (1) If any institution related to health sciences established and operating under the prevailing law wishes to merge with the Academy, the Academy may merge such institution into the Academy. (2) The basis and procedure for merging an institution pursuant to Sub-section (1) shall be as prescribed. 31. To Act in Accordance with National Education and Health Policy: The Academy shall act in accordance with the national health and education policy approved by the Government of Nepal. 32. Provision relating to Reservation: (1) The Academy shall make provision for reservation for women, Dalits, Adivasi/Janajati, persons with disabilities, Madhesi and students from backward areas who have studied in community schools and passed the School Leaving Certificate or equivalent, of not less than ten percent of the total number of students admitted in each academic session. (2) Students for the seats reserved pursuant to Sub-section (1) shall be selected through competition. 33.

Priority to be Given in Admitting Students: (1) The Academy shall give priority to admit to the undergraduate level of the Academy for study, health service assistant employees who have passed the Proficiency Certificate level or equivalent in a subject related to health sciences after passing the School Leaving Certificate or equivalent, and have worked in a health institution in a remote area for a prescribed period. (2) An employee wishing to be admitted pursuant to Sub-section (1) must have fulfilled the criteria set by the Nepal Medical Council. 34. Scholarships to be Provided: (1) The Academy shall provide full scholarships to economically disadvantaged students in at least fifty percent of the total seats of the total number of students admitted in each academic session. Explanation: For the purpose of this Section, "economically disadvantaged" means students who have studied in community schools and passed the School Leaving Certificate or equivalent and are recommended as economically disadvantaged by the related Rural Municipality or Municipality on prescribed basis. (2) Out of the fifty percent referred to in Sub-section (1), regarded as one hundred percent, scholarships shall be provided only to students from women, Dalits, Adivasi/Janajati, Madhesi, persons with disabilities and backward areas in forty-five percent of such seats. (3) The basis for providing scholarships pursuant to Sub-sections (1) and (2) shall be as prescribed. (4) Any body or organization may provide a scholarship to any student for study at the Academy. 35. To Work in Prescribed Locality: (1) A student who has studied under reservation or scholarship provided under this Act

shall work in a backward area prescribed by the Academy for at least three years. (2) If the body or organization providing the scholarship has stipulated a condition that the student studying under the scholarship of any body or organization must work in a certain locality for a certain period in consideration of receiving such scholarship, the student shall work in accordance with such condition, and if no such condition is stipulated, the student shall work for the period pursuant to Sub-section (1). (3) A student admitted under priority of the Academy pursuant to Section 33 shall work in a backward area for a period prescribed by the Academy. (4) Amended by Some Nepal Acts Amendment Act, 2075.

The Academy shall issue the provisional certificate of educational qualification to a student studying under the reservation pursuant to Sub-section (1) of Section 32 and the scholarship pursuant to Section 34 only after the student works for the full period mentioned in Sub-section (1), (2) or (3).

(5) Except for students studying under reservation, priority or scholarship pursuant to Sections 32, 33 and 34, the Academy may make necessary arrangements to encourage other students studying in the Academy to work in health institutions in backward areas after their study. 36. Annual Report: (1) The Academy shall submit an annual report of its activities carried out during the year to the Ministry within three months of the end of each fiscal year.

(2) The report pursuant to Sub-section (1) shall, among other things, include a brief description of the work performed by the Academy during the year and the achievements of the Academy. 37. Delegation of Powers: (1) The Assembly may delegate some of the powers conferred on it under this Act to the Academic Council, Executive Council or Vice-Chancellor as required.

(2) The Academic Council and the Executive Council may delegate some of the powers conferred on them under this Act to any office bearer of the Academy or any subordinate body as required. 38. Acts and Proceedings Not to be Invalid: Acts and proceedings performed by the Academy shall not be invalid merely by reason of the vacancy of the position of any office bearer or member of the Academy or any defect in the appointment or nomination of any office bearer or member of any organization of the Academy. 39. Power to Give Directions: The Chancellor and the Pro-Chancellor may give necessary directions to the Academy regarding the acts and proceedings of the Academy, and it shall be the duty of the Academy to comply with such directions. 40. Communication with Government of Nepal: The Academy shall communicate with the Government of Nepal through the Ministry. 41. To Take Oath: A person appointed to the office of an office bearer of the Academy shall take an oath in the format as prescribed before assuming the charge of his/her office. 42.

Employees May Remain in the Academy: (1) Among the employees of the Nepal Health Service working at the Rapti Sub-Regional Hospital, Ghorahi, Dang at the time of commencement of this Act, such employees desiring to work in the Academy shall submit an application to the Ministry within six months from the date of commencement of the employee service rules made under this Act. (2) If the Ministry grants approval for an employee who submits an application pursuant to Sub-section (1) to remain as an employee of the Academy, such employee shall be deemed to be an employee of the Academy. (3) The service period of an employee who remains in the Academy pursuant to Sub-section (2) in the health service shall be counted as service period in the Academy. 43. Power to Make Rules: (1) The Academy may make necessary rules for the implementation of this Act. (2) Notwithstanding anything contained in Sub-section (1), while making rules on matters involving additional financial burden on the Government of Nepal, approval of the Ministry of Finance, Government of Nepal shall be obtained. 44. Repeal and Saving: (1) The Rapti Sub-Regional Hospital Development Committee (Formation) Order, 2068 is repealed. (2) Teachers and employees working in the

Development Committee under the Formation Order pursuant to Sub-section (1) shall be transferred to positions of equivalent level and rank in the Academy. (3) All acts and proceedings performed pursuant to the Order pursuant to Sub-section (1) shall be deemed to have been performed under this Act. (4) All rights and liabilities including movable and immovable property, transactions, loans, and assets in the name of the Development Committee under the Order pursuant to Sub-section (1) shall be deemed to have been transferred to the Academy. (5) Until the Hospital Management Committee is formed under this Act, the committee formed under the Order pursuant to Sub-section (1) shall perform the work of that Hospital Management Committee.